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The Gazette of the Democratic Socialist Republic of Sri Lanka

EXTRAORDINARY

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No. 2067/13 – THURSDAY, APRIL 19, 2018

(Published by Authority)

PART I: SECTION (I) – GENERAL

Government Notifications

My No.: CI/1335.

THE INDUSTRIAL DISPUTES ACT, CHAPTER 131

THE Collective Agreement entered into between Ceylon Biscuits Limited, Makumbura, Pannipitiya of the *one part* and the Inter Company Employees Union, 259/9, Sethsiri Mawatha, Koswatta” Thalangama of the *other part* on 9th May, 2017 is hereby published in terms of Section 06 of the Industrial Disputes Act, Chapter 131, of the Legislative Enactments of Ceylon (Revised Edition 1956).

A. WIMALAWEERA,
Commissioner General of Labour.

Department of Labour,
Labour Secretariat,
Colombo 05.
04th April, 2018.

Collective Agreement No. 22 of 2017

COLLECTIVE AGREEMENT

This Collective Agreement made on this Ninth (9th) day of May Two Thousand Seventeen, to take effect from 1st day of January Two Thousand Seventeen, between ‘Ceylon Biscuits Limited, a Company duly registered under the companies’ Ordinance, and having its registered office at Makumbura, Pannipitiya, (hereinafter referred to as “ the Employer”) of the *One part* and the Inter Company Employees Union, a Trade Union duly registered under the Trade Unions, Ordinance and having its registered office at 259/9, Sethsiri Mawatha, Koswatta, Thalangama (hereinafter referred to as “ the Union”) of the *Other part*.

It is hereby agreed by and between the aforesaid parties, as follows :

1. **Title :** This Agreement shall be known and referred to as the “Ceylon Biscuits Limited Factory Employees Collective Agreement.



2. **Parties Covered and Bound.**— This Agreement shall cover and bind the Employer and the Union and the employees presently employed by the Employer in its factory on permanent monthly contracts in the grades of employment for which salary scales have been set out in the First Schedule hereof and are members of the Union.

3. **Duration of the Agreement.**— This Collective Agreement shall be effective from the First day of January Two Thousand Seventeen, and may be terminated by either party with one months' written notice to the other, provided however that neither party shall give such notice prior to the Thirtieth day of November, Two thousand Nineteen. Any notice of termination of this Agreement given by either party prior to the thirtieth day November, Two Thousand Nineteen, shall not be regarded as valid notice and shall be of no avail.

4. **Salaries.**— With effect from First January Two Thousand Seventeen, the Employer will pay salaries to employees covered and bound by this Agreement, in accordance with the salary scales set out in the First schedule hereof.

5. **Conversion to New Salary Scales**

1. **Salary Revision with Effect From 1st January 2017** .- To ascertain the monthly salary payable to an employee, with effect from First January Two Thousand Seventeen, a sum of Rupees Three Thousand Three Hundred (Rs. 3,300/-) will be added to the salary that was paid to such employee in the month of December Two Thousand Sixteen, and such employee shall thereafter be placed on the corresponding point in monetary terms of the salary scales set out in the First Schedule hereof.

II. **Salary Revision with Effect From 1st January 2018.**— With effect from First January Two Thousand Eighteen, the salary of each employee covered and bound by this Agreement shall be revised by the addition of Rupees Three Thousand (Rs. 3,000/=) to the salary received by such employee in the month of December Two Thousand Seventeen. Each employee shall thereafter be placed on the corresponding point in monetary terms of the salary scales set out in the First Schedule hereof.

III. **Salary Revision with Effect From 1st January 2019.**— With effect from First January Two Thousand Nineteen, the salary of each employee covered and bound by this Agreement shall be revised by the addition of Rupees Three Thousand (Rs. 3,000/=) to the salary received by such employee in the month of December Two Thousand Eighteen. Each employee shall thereafter be placed on the corresponding point in monetary terms of the salary scales set out in the First Schedule hereof.

6. **Bonus.**—

- i. By way of bonus, the Employer shall pay all employees, who have completed one or more years of service, a sum equal to one month's salary per employee, in December each year.
- ii. In the month of April each year, the Employer will pay to each employee, who has served during the entire previous Calendar year, a bonus related to attendance, in the manner calculated hereunder:-
 - (a) One month's salary to those employees who doesn't have a half day or single day of unauthorized Absence during the previous calendar year.
 - (b) 50% of one month's salary to those employees who have been absent in excess of half day up to five days, during the previous calendar year.
 - (c) 45% of one month's salary to those employees who have been absent in excess five days, up to ten days, during the previous calendar year.
 - (d) 40% of one month's salary to those employees who have been absent in excess ten days, up to fifteen days, during the previous calendar year.
 - (e) Employees who have been absent in excess of fifteen days during the previous calendar year shall not be entitled to any payment of bonus under (ii) above.

"Absence" for the purpose of calculating this bonus payment shall be all days an employee, is absent from work without authority.

"Salary" for the purpose of calculating this bonus will be the salary which is applicable to each employee at the time the bonus is paid.

- iii. Provided the business operations of the employer have been profitable in the 12 months preceding, to warrant the declaration of a bonus, the employer will, in the month of March each year, declare a bonus. In the event of no bonus being declared by the employer in the month of March, as provided herein, the Union reserves to itself the right to raise an industrial dispute and have such dispute resolved under the provisions of clause 11 of this Agreement. The union and the Employees undertake that they shall not resort to any form of trade union action in respect of a dispute arising with regard to this bonus payment.

7. **Attendance Incentive - April.**— In addition to the April bonus, an attendance incentive of 50% of the basic salary will be given to employees who do not have a single day of unauthorized Absence during the previous calendar year.

“Absence” for the purpose of calculating this attendance incentive payment shall be all days an employee, is absent from work without authority.

“Salary” for the purpose of calculating this attendance incentive will be the salary which is applicable to each employee at the time the incentive is paid.

8. Leave

Casual Leave.— Employees shall be entitled to 7 days casual leave during any calendar year. In the first year of employment, the casual leave entitlement shall be on the basis of one day for every two months worked. Casual leave shall not be taken in excess of two consecutive days at a time and shall not precede or succeed any period of annual or sick leave. All casual leave should be applied for in advance, provided however that in the event of any unforeseen circumstances, which prevents an employee from making an application in advance, He/she shall inform the Employer of the reasons for the absence within a period of 24 hours.

Sick Leave.— Employees shall be entitled to 7 days sick leave during any calendar year. In the first year of employment, the sick leave entitlement shall be on the basis of one day for every two months worked. Wherever possible, an employee shall make an application cannot be made in advance, he shall inform the Employer of the reasons for his absence within 24 hours. Any period of sick leave in excess of two days shall have to be supported by a Medical Certificate acceptable to the Employer.

Annual Leave.— The Employees will be entitled to Annual Leave in terms of the decisions of the Wages Board for the Biscuit and Confectionary Manufacturing Trade.

9. **Disputes Settlement Procedure.**— It is agreed by and between parties, that any industrial dispute that may occur between the Employer and the Union and/or the employees, during the period of this Agreement shall be dealt with in the manner set out hereunder.

- i. The Branch Union or the employees concerned shall, at the outset, raise any dispute with the Employer and both parties shall endeavour to reach a satisfactory settlement of the dispute through negotiations.
- ii. In the event of there being no settlement, after consultation between parties as aforesaid, the Branch Union shall raise the matter with the Union and the Union shall raise it with the Employers' Federation of Ceylon, of which the Employer is a member, and the Union and the Federation shall strive to reach a satisfactory settlement in consultation with all parties concerned.
- iii. In the event of there being no satisfactory settlement, consequent to the attempt made by the Union and the Employers' Federation of Ceylon, either party may seek the intervention of the Commissioner General of labour to settle the dispute, in accordance with the provisions of the Industrial Disputes Act.
- iv. If after conciliation has failed in the Department of Labour, the Union wishes to take Trade Union action, written notice should be given of not less than 14 days to the Employer and to the Employers' Federation of Ceylon regarding such Trade Union Action.

10. **Trade Union Action.**— It is agreed that the Union or the employees shall not resort to any form of Trade Union action in respect of any industrial dispute pertaining to this Agreement during the period of this Agreement, and shall endeavour to settle any industrial dispute that may arise during the period of this Agreement, in accordance with the disputes Procedure laid down herein.

11. **Variation of Terms and Conditions.**— It is agreed by the between parties that neither party will, during the period of this Agreement, attempt in any manner to change, vary, alter, add to or amend in any form, any of the terms and conditions set out in this Agreement and/or any other terms and conditions which are currently applicable to the employees covered and bound by this Agreement, other than by way of mutual consent.

12. **Reciprocal Obligations of the Employees.**— In pursuance of the concession granted by the Employer to the Union and the employees, the Union and the employees shall reciprocate in such manner as will benefit both employees and the Company. For this purpose, the employees shall.—

- a. *Customer Service.*— Contribute at all times to excellence in customer service.
- b. *Productivity.*—Co-operate in the implementation of training and all performance improvement measures adopted from time to time aimed at enhancing the productivity of the Human, Technological and Financial Resources procured and applied by the Company.

If the company requires work to be performed on a statutory holiday or a Poya day, and Upon sufficient prior notice being given to workers in that regard, a worker may volunteer to work on such statutory or Poya holiday subject to statutory obligations imposed on the Company in respect of work performed on that day.

The Union agrees that they will not object to such work arrangement if done with the consent of workers.

- c. *Quality.*— Actively and consistently contribute to achieve and maintain those standards of quality prescribed by National and International Institutions, and which may be prescribed from time to time as applicable to product and processes engaged in by the Company and as may be laid down by the Management.
- d. *Security.*— Contribute actively to maintain the security of all personnel and property belonging to the Company.
- e. *Safety.*— Consistently maintain prescribed safety standards in regard to persons, equipment, process, material, work group, work environment and follow all instructions, which may be given from time to time, aimed at securing the safety of the above.
- f. To ensure that all Company issued clothing and devices /tools will be kept in good condition and to immediately report all equipment defects to Supervisors.
- g. *Personal Hygiene* - Meet and consistently maintain all standards and practices, Set out for the personal hygiene of employees as required by the management.
- h. *House - Keeping.*— Meet and extend full co-operation in maintaining standards set out for good house - keeping.
- i. Accept recognized work study findings and to optimize skills and manning levels accordingly.
- J. *Service Image.*— Consistently maintain integrity in service and not expect or accept gratification in any form or manner from customers, distributors, suppliers or their Agents or representatives for any services rendered in the performance of employees' duties.
- k. *Job Rotation.*— Job enlargement and rotation to be implemented.
- l. *Company Image .*— Actively and wherever possible, promote the good image of the Company, and refrain from acting in any manner within or outside the work environment that would adversely affect the image, goodwill or reputation of the Company and its employees.
- m. *Minimizing of waste.*— Actively and consistently contribute to all prescribed activities by the management and the company to eliminate waste of
 - a. Wrapping
 - b. Biscuit grinding
 - c. Sweeping
 - d. Other waste

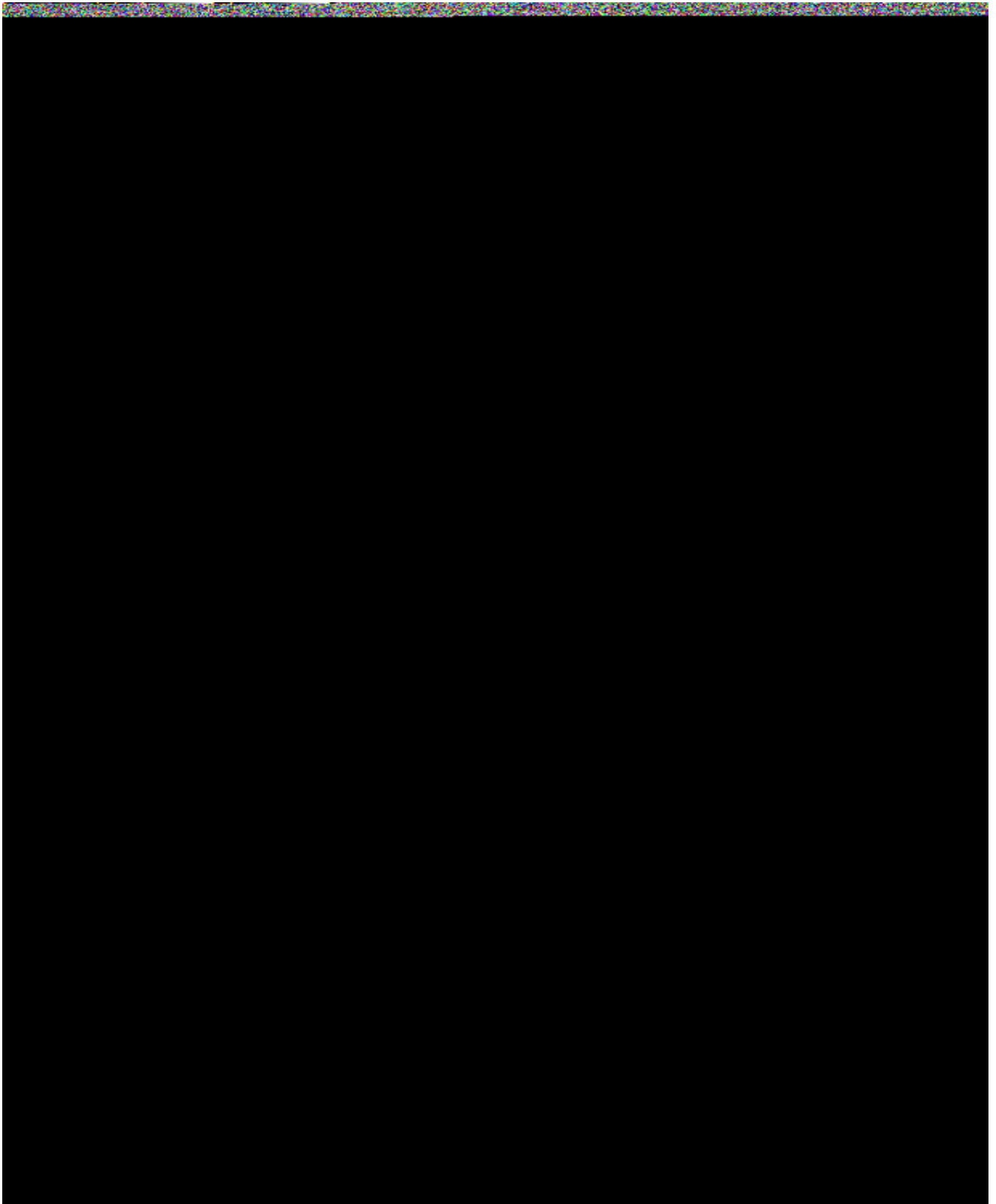
13. **Reciprocal Obligations of the Employer**

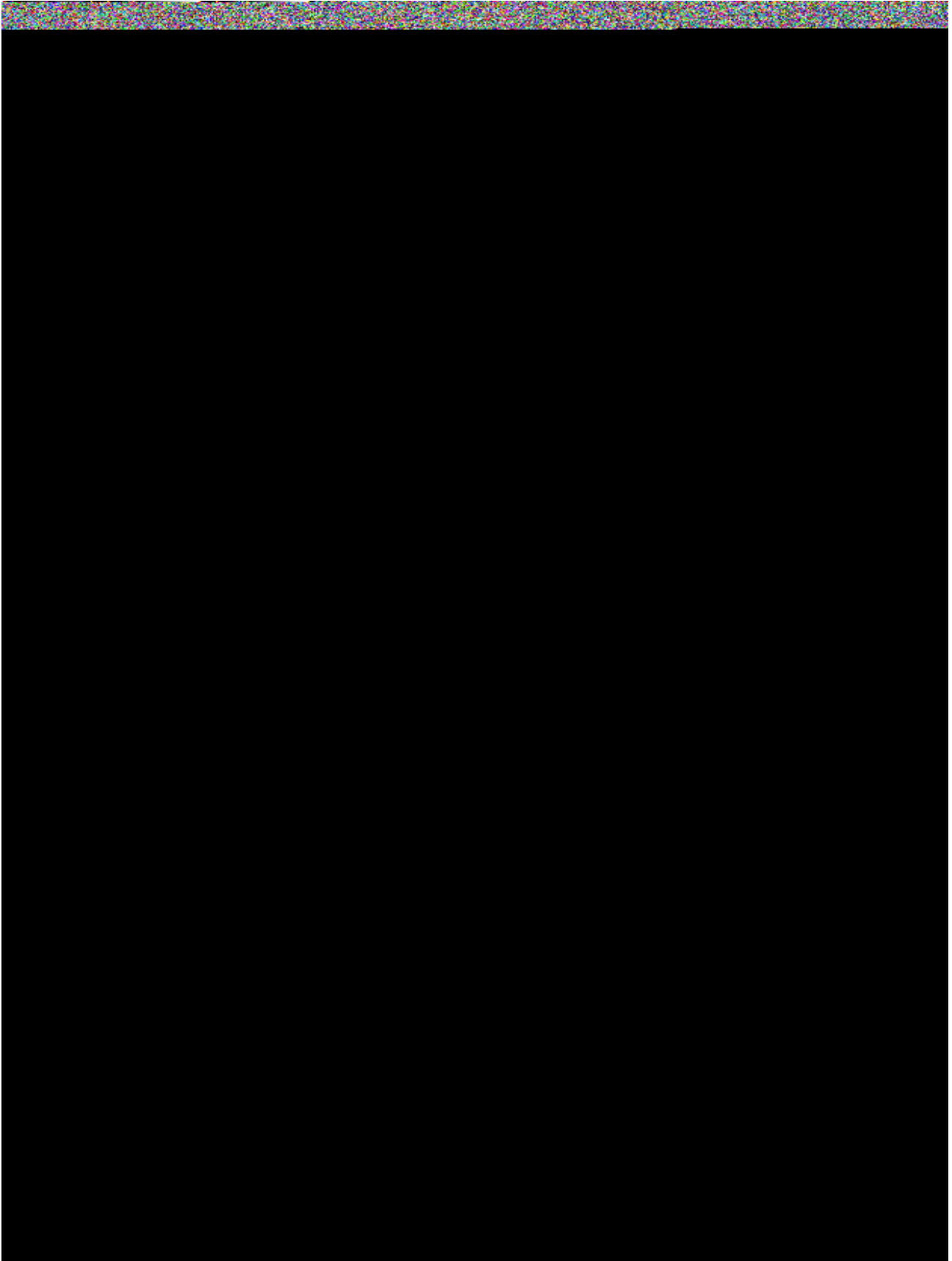
- a. The company shall, for the duration of this Collective Agreement, absorb a minimum of 30 employees annually to the permanent cadre from the “3 year contract pool” based on their satisfactory attendance, seniority and good conduct.

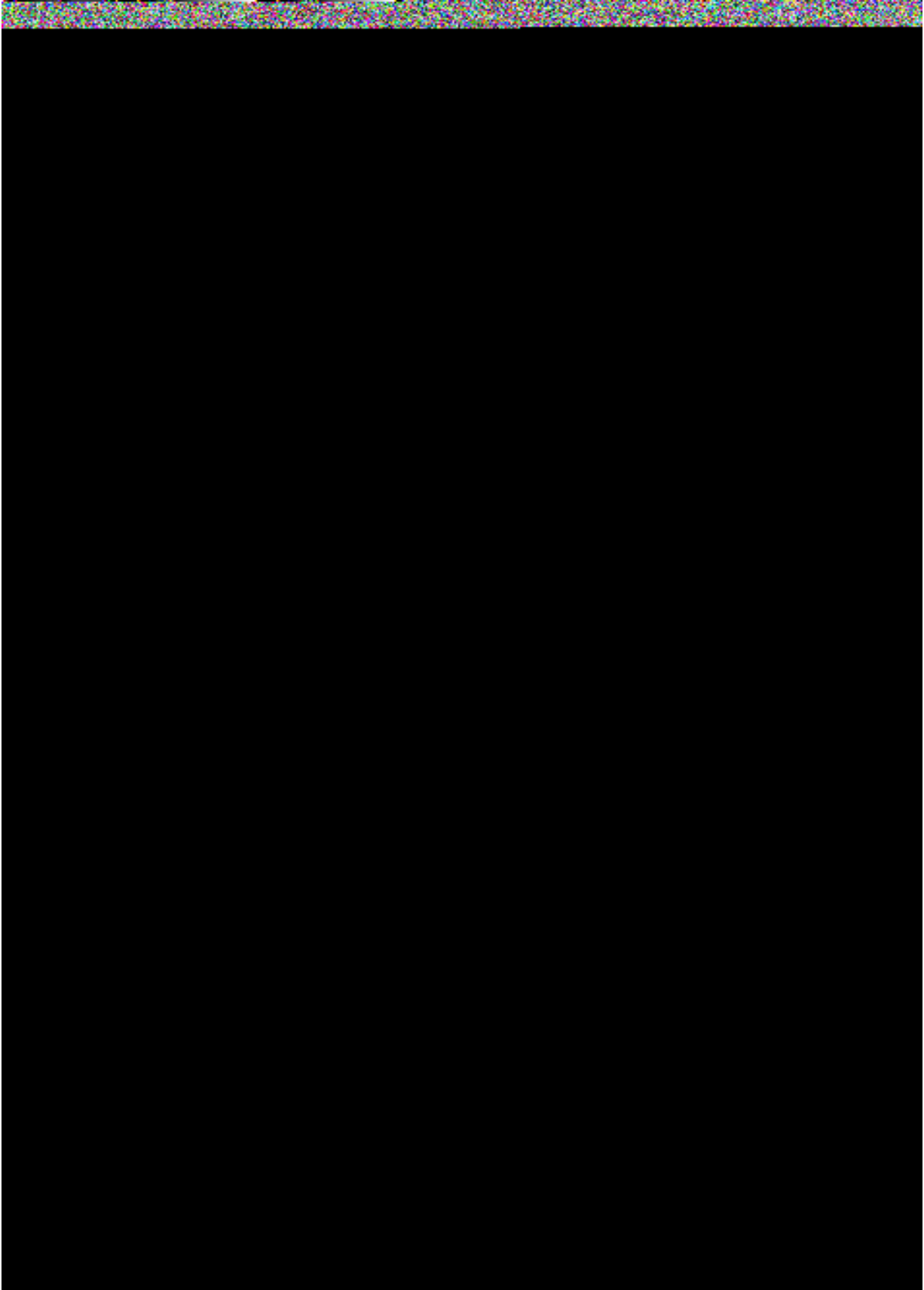
The “3 year conduct pool” herein refers to employees in the three (3) year fixed term contract pool of the company.

This shall become effective from the date of signing of this Collective Agreement.

- b. The Company shall, for the duration of this Collective Agreement, provide an opportunity for a minimum of 20 manpower employees per annum to be absorbed to the “3 years contract pool” as new employees subject to the Company’s recruitment process.



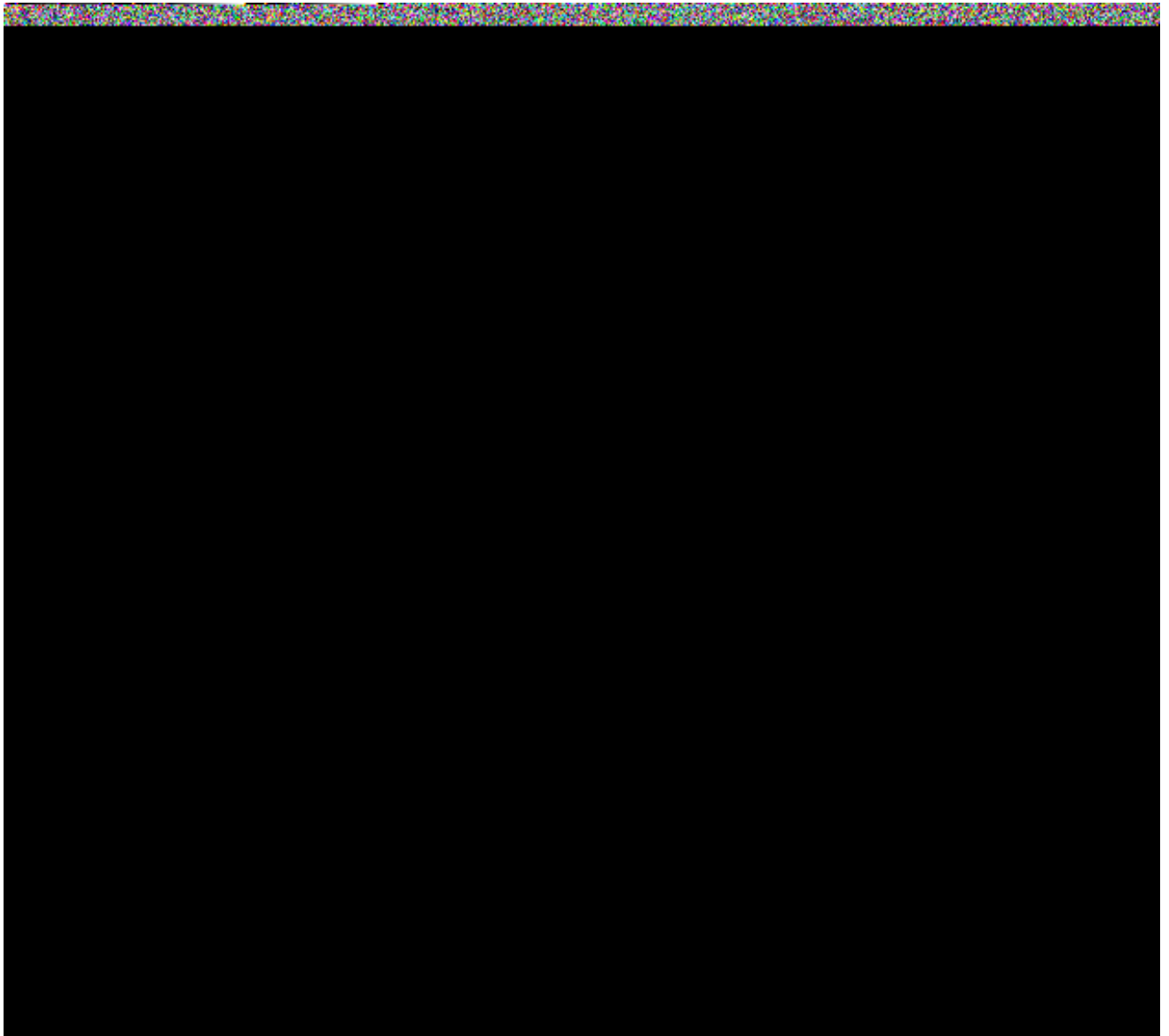


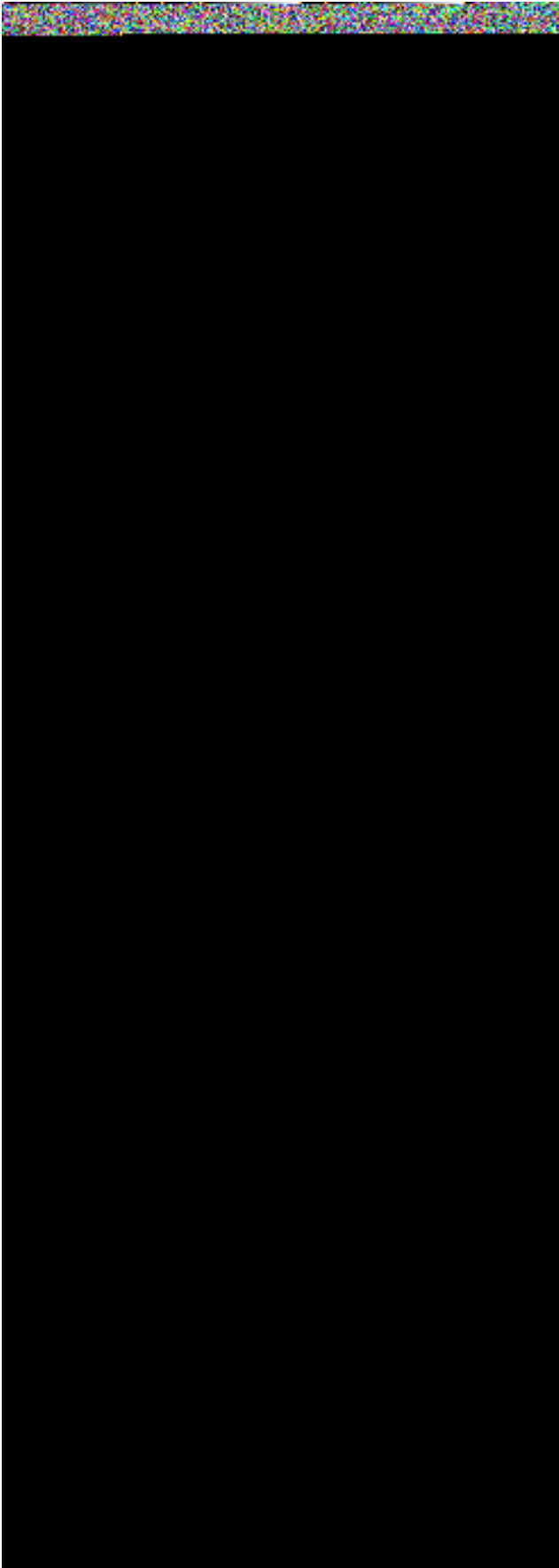


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PART I: SEC. (I) – GAZETTE EXTRAORDINARY OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA – 19.04.2018

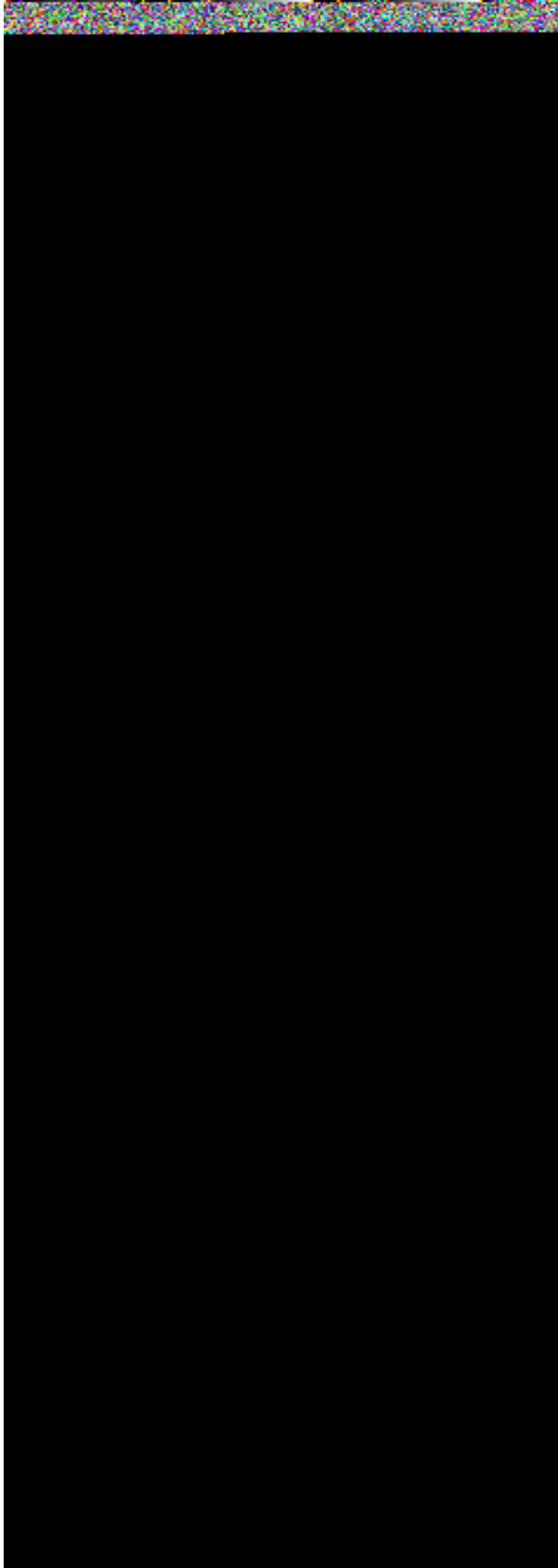


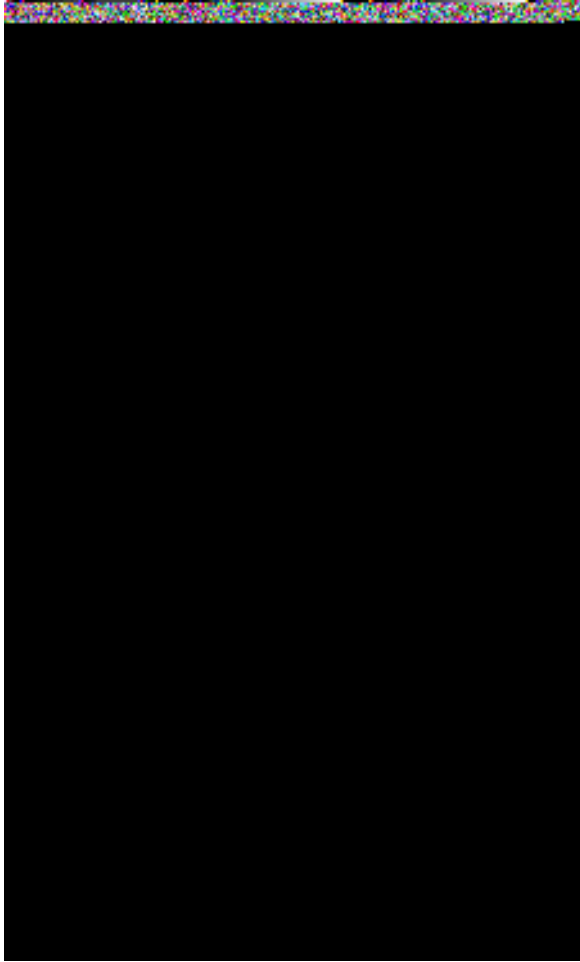


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PART I: SEC. (I) - GAZETTE EXTRAORDINARY OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA - 19.04.2018





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